

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 24, 2026 AT 8:30 A.M.

19. S-CV-0056677 RASMUSSEN, CASEY v. BURNS, CHRISTA

Cross-Defendant Casey Rasmussen's Demurrer to the First Amended Cross-Complaint (FAC-C)

Preliminary Matters

As an initial matter, the court will consider the substance of the demurrer. Code of Civil Procedure section 430.40(a) is permissive in nature, stating that a demurrer *may* be filed within 30 days after the filing of the complaint. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280.) Further, the court has discretion to consider a demurrer, even an untimely filed one. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750.)

Ruling on Request for Judicial Notice

Cross-defendant's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained in part with leave to amend.

The first cause of action for quiet title is deficiently pleaded as it does not plead sufficient facts to allege the date in which cross-complaint seeks a determination as to title. (Code of Civil Procedure section 761.020(d).)

The second cause of action for fraudulent concealment fails to plead the level of sufficiency necessary to support such a claim. Specifically, the allegations do not sufficiently allege cross-defendant concealed a material fact; that cross-defendant intentionally concealed or suppressed the fact with the intent to defraud; or that the cross-complainant was unaware of the material fact and would not have acted if she had known of the concealed or suppressed fact. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.)

The third and fourth causes of action for intentional misrepresentation are deficiently pleaded as cross-complainant does not allege sufficiently specific facts of an intent to induce reliance or actual and justifiable reliance. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1245.)